

*This opinion is nonprecedential except as provided by
Minn. R. Civ. App. P. 136.01, subd. 1(c).*

**STATE OF MINNESOTA
IN COURT OF APPEALS
A25-2106
A26-0532**

Michael Kwabena Asiedu,
Appellant,

vs.

Terry Eastlund, et al.,
Respondents.

**Filed September 8, 2026
Affirmed
Larson, Judge**

Olmsted County District Court
File No. 55-CV-25-2902

Michael Kwabena Asiedu, Milwaukee, Wisconsin (self-represented appellant)

Gregory J. Griffiths, Christopher W. Coon, Dunlap and Seeger, P.A., Rochester, Minnesota
(for respondents)

Considered and decided by Ross, Presiding Judge; Larson, Judge; and Beane, Judge.

NONPRECEDENTIAL OPINION

LARSON, Judge

Appellant Michael Kwabena Asiedu challenges the district court's decision to dismiss his complaint under Minn. R. Civ. P. 12.02(e) and impose sanctions. We affirm.

FACTS

In May 2025, Asiedu filed an amended complaint naming respondents Olmsted County's Health, Housing, and Human Services division (the county), Teri Eastlund

(caseworker Eastlund), Kris Giere (supervisor Giere), and John Does 1-5¹ as defendants. The county is a governmental subdivision “that administers child protection services.” Caseworker Eastlund and supervisor Giere are county employees working in “child protection services.” John Does 1-5 are “other county employees or agents who participated in the acts alleged.”

According to the complaint,² respondents removed Asiedu’s 12-year-old child (child) from school without a court order, child-in-need-of-protection-or-services petition, or emergency-removal findings. The complaint asserts that respondents’ reason for removing child was “false and unsubstantiated claims” that child “had disclosed abuse.” Respondents placed child in protective care. Caseworker Eastlund then authored a safety plan (the plan), which child signed. The plan contained the “false and unsubstantiated” abuse allegations. The plan was disseminated to third parties. Because of the plan, Asiedu lost access to child’s education and health information, had restricted access to child, and was not able to make decisions about child’s schooling or health. Respondents then refused to give Asiedu access to the plan, case notes, or other relevant records. Based upon these allegations, Asiedu asserted five claims against respondents, including a claim under 42 U.S.C. § 1983 (2025), and four state-law claims.

¹ We refer to caseworker Eastlund, supervisor Giere, and John Does 1-5 collectively as “employees.”

² In reviewing a district court’s decision to grant a motion to dismiss, “we must accept the allegations in [the] complaint as true.” *Sterry v. Minn. Dep’t of Corr.*, 8 N.W.3d 224, 228 (Minn. 2024).

Respondents moved to dismiss under Rule 12.02(e). As relevant here, respondents asserted that Asiedu's claims failed because respondents were entitled to qualified and official immunity. Following a hearing, the district court agreed and granted respondents' motion. Using its inherent authority, the district court also sanctioned Asiedu on the ground that he provided caselaw in a manner that was "either misleading, false, [or] non-existent." The district court determined the appropriate sanction was respondents' reasonable costs and attorney fees in the amount of \$2,341.25.

Asiedu appeals.³

DECISION

Asiedu challenges the district court's decisions to dismiss his complaint under Rule 12.02(e) and impose sanctions.⁴ We address each challenge in turn.

I.

Asiedu first challenges the district court's decision to dismiss his complaint under Rule 12.02(e). A district court must dismiss a complaint that fails "to state a claim upon which relief can be granted." Minn. R. Civ. P. 12.02(e). A claim withstands a motion to dismiss if "it is possible on any evidence which might be produced, consistent with the

³ Before the district court adjudicated the amount of attorney fees, Asiedu appealed. We dismissed the attorney-fees portion of Asiedu's appeal as premature. Following the district court's decision on the amount of costs and attorney fees, Asiedu appealed and moved to consolidate. We granted that request.

⁴ In district court, Asiedu "reasserted" a motion for a temporary restraining order, which the district court declined to address because Asiedu failed to request permission to bring a motion to reconsider. Asiedu appears to challenge that decision on appeal, but we decline to reach any arguments regarding this decision because they are inadequately briefed. *See State Dep't of Lab. & Indus. v. Wintz Parcel Drivers, Inc.*, 558 N.W.2d 480, 480 (Minn. 1997) (declining to address inadequately briefed question).

pleader’s theory, to grant the relief demanded.” *Walsh v. U.S. Bank, N.A.*, 851 N.W.2d 598, 603 (Minn. 2014). We review whether a complaint sets forth a legally sufficient claim de novo, accepting the facts alleged in the complaint as true and construing all reasonable inferences in favor of the nonmoving party. *Sterry*, 8 N.W.3d at 235.⁵

As relevant here,⁶ Asiedu argues the district court erred when it dismissed his complaint on the ground that respondents were entitled to immunity. To resolve these arguments, we first address whether employees were entitled to qualified immunity from Asiedu’s section 1983 claim.⁷ Second, we address whether respondents were entitled to official and vicarious official immunity on Asiedu’s state-law claims. Whether a party is immune from suit is a legal question that we review de novo. *Mumm v. Mornson*, 708 N.W.2d 475, 481 (Minn. 2006) (addressing both qualified and official immunity).

A. Qualified Immunity

Asiedu argues the district court erred when it determined employees were entitled to qualified immunity from his section 1983 claim. Section 1983⁸ provides a private right

⁵ Because we independently review whether Asiedu failed to state a claim upon which relief could be granted, we do not reach Asiedu’s argument that the district court improperly construed his complaint. *See Sterry*, 8 N.W.3d at 235 (noting we review district court’s decision to grant motion to dismiss de novo).

⁶ Because we resolve this appeal on immunity grounds, we do not reach Asiedu’s alternative arguments regarding the merits.

⁷ We do not discern that Asiedu raises any arguments on appeal to challenge the merits of the district court’s decision that the county was entitled to “vicarious qualified immunity.” To the extent Asiedu intended to raise this issue, it was inadequately briefed, and we decline to consider it. *See State Dep’t of Lab. & Indus.*, 558 N.W.2d at 480 (declining to address inadequately briefed question).

⁸ Section 1983 creates a cause of action if a person, under color of state law, “subjects, or causes to be subjected, any citizen of the United States . . . to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws.”

of action for damages when state officials violate a person’s constitutional rights. *McDeid v. Johnston*, 984 N.W.2d 864, 871 (Minn. 2023) (citing *Ziglar v. Abbasi*, 582 U.S. 120, 129 (2017)). Qualified immunity shields a government official from civil liability under section 1983 if “their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.” *Mumm*, 708 N.W.2d at 483 (quoting *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982)). Questions of qualified immunity “should be resolved at the earliest possible stage to shield [officials] from disruptive effects of broad-ranging discovery and effects of litigation.” *Elwood v. Rice County*, 423 N.W.2d 671, 675 (Minn. 1988) (citing *Anderson v. Creighton*, 483 U.S. 635, 646 n.6 (1987)). As such, plaintiffs must provide more than conclusory allegations and “should supply in their complaints or other supporting materials greater factual specificity and particularity than is usually required.” *Id.* at 676 (quotation omitted).

To evaluate a qualified-immunity claim, we must assess “whether the facts alleged are adequate to show a constitutional violation,” and “whether the law regarding the right allegedly violated ‘was clearly established.’” *Mumm*, 708 N.W.2d at 483 (quoting *Saucier v. Katz*, 533 U.S. 194, 201 (2001)). “A constitutional right is clearly established when its contours are sufficiently clear that a reasonable official would understand that what he is doing violates that right.” *Welters v. Minn. Dep’t of Corr.*, 982 N.W.2d 457, 480 (Minn. 2022) (quotation omitted).

Asiedu argues he stated a claim that employees violated his substantive due-process rights.⁹ “To state a substantive due process claim against a state official, a plaintiff must demonstrate that a fundamental right was violated and that the official’s conduct shocks the conscience.” *Mitchell v. Dakota Cnty. Soc. Servs.*, 959 F.3d 887, 898 (8th Cir. 2020). “Conscience shocking conduct only includes ‘the most severe violations of individual rights that result from the brutal and inhumane abuse of official power.’” *Id.* (quoting *White v. Smith*, 696 F.3d 740, 757-58 (8th Cir. 2012)). “Only a purpose to cause harm unrelated to the legitimate object of the government action in question will satisfy the element of arbitrary conduct shocking to the conscience, necessary for a [substantive] due process violation.” *Folkerts v. City of Waverly*, 707 F.3d 975, 981 (8th Cir. 2010) (emphasis omitted).

We conclude that Asiedu failed to allege the conscious-shocking behavior necessary to establish a violation of his substantive due-process rights. Asiedu’s allegations against employees all “derive from actions taken during the course of a child abuse investigation.” *See Mitchell*, 959 F.3d at 898. Even assuming as true that the abuse allegations were “false and unsubstantiated,” reliance on those allegations to ensure child’s safety “is not an egregious abuse of power that shocks the conscience.” *Id.*; *see also Fitzgerald v. Williamson*, 787 F.2d 403, 408 (8th Cir. 1986) (concluding caseworker conduct did not

⁹ The complaint also alleged that respondents violated Asiedu’s procedural due-process rights. But to sustain such a claim, Asiedu must allege facts demonstrating that respondents deprived him of “notice and an opportunity to be heard at a meaningful time and in a meaningful manner.” *Sawh v. City of Lino Lakes*, 823 N.W.2d 627, 632 (Minn. 2012) (quotation omitted). Asiedu made no such allegations and, accordingly, Asiedu’s section 1983 claim related to procedural due process fails.

shock the conscience when caseworker “arranged for the child to be examined by a psychologist and, after receiving confirmation of child abuse, reduced the parents’ visitation rights”). Accordingly, the district court did not err when it dismissed Asiedu’s section 1983 claim with respect to employees because they were entitled to qualified immunity.

B. Official and Vicarious Official Immunity

Asiedu challenges the district court’s decision to dismiss his state-law claims on the grounds that employees were entitled to common-law official immunity and the county was entitled to common-law vicarious official immunity. Common-law official immunity provides that a public official cannot be held personally liable for damages from carrying out “duties which call for the exercise of [their] judgment or discretion.” *Elwood*, 423 N.W.2d at 677 (quotation omitted). Official immunity protects individual government actors so they may “perform their duties effectively, without fear of personal liability that might inhibit the exercise of their independent judgment.” *Kariniemi v. City of Rockford*, 882 N.W.2d 593, 600 (Minn. 2016) (quotation omitted).

“Official immunity is subject to two limitations.” *Jepsen as Tr. for Dean v. County of Pope*, 966 N.W.2d 472, 482 (Minn. 2021). First, a public official is not entitled to official immunity if their “exercise of independent [judgment] or discretion is a willful or malicious wrong—meaning that the public official intentionally performs a wrongful act without legal justification or excuse or willfully violates a known right of the plaintiff.” *Id.* Second, a public official is not entitled to official immunity if they “fail[] to perform or negligently perform[] an act that is deemed ministerial.” *Id.* (quotation omitted).

Asiedu first argues, without citation to any authority, that the allegations in his complaint sufficiently allege “willful or malicious” conduct on the part of employees. In this context, “wil[l]ful and malicious are synonymous” and mean “the intentional doing of a wrongful act without legal justification or excuse, or, otherwise stated, the willful violation of a known right.” *Rico v. State*, 472 N.W.2d 100, 107 (Minn. 1991). And, as observed by the district court, there are no allegations in the complaint that employees acted with an improper motive in their efforts to respond to an allegation of child abuse—even assuming as true that the allegation was “false and unsubstantiated.”

Asiedu argues second, again without citation to any authority, that employees were not acting in “an open-ended discretionary function” because they failed to follow the proper statutory process for removing a child from a parent’s care. Common-law official immunity applies to a public official’s “discretionary” duties, but not their “ministerial” duties. *Anderson v. Anoka Hennepin Indep. Sch. Dist. 11*, 678 N.W.2d 651, 655 (Minn. 2004) (quotation omitted). To determine whether an act is ministerial or discretionary, we focus “on the nature of the act at issue.” *Id.* at 656. “A discretionary act requires the exercise of individual judgment.” *Kari v. City of Maplewood*, 582 N.W.2d 921, 923 (Minn. 1998). Whereas a ministerial duty is “absolute, certain, and imperative, involving merely the execution of a specific duty arising from fixed and designated facts.” *Johnson v. State*, 553 N.W.2d 40, 46 (Minn. 1996) (quotation omitted).

With respect to employees, Asiedu alleged that, in their role working for “child protection services,” they placed child in protective custody, created the plan based on fabricated allegations, disseminated the plan to third parties, and denied Asiedu access to

relevant information. We conclude that these are discretionary duties. *See Olson v. Ramsey County*, 509 N.W.2d 368, 371-72 (Minn. 1993) (concluding county worker exercised discretionary duties when making case plan). And in our independent review, we find no support for Asiedu’s assertion that, because he alleged the discretionary conduct did not comport with existing law, employees are not entitled to official immunity. *See, e.g., Elwood*, 423 N.W.2d at 676-79 (concluding police officers were entitled to official immunity even though they unlawfully entered home without warrant).

Moving to the county, if common-law official immunity applies to a public official’s conduct, the government employer generally will be vicariously immune from suit as well. *See Schroeder v. St. Louis County*, 708 N.W.2d 497, 508 (Minn. 2006). “Ultimately, the extension of vicarious official immunity is a policy question for the court.” *Id.* Even so, granting official immunity to an employee while denying it to their employer would put “stifling attention on the social worker’s performance, to the serious detriment of that performance.” *Olson*, 509 N.W.2d at 372. Because employees were entitled to official immunity, we conclude that the district court correctly extended the same protection to the county.

For these reasons, we conclude the district court correctly dismissed Asiedu’s state-law claims.

II.

Asiedu challenges the district court’s decision to impose sanctions using its inherent power and to award respondents attorney fees. District courts possess inherent authority to impose sanctions to protect “their vital function—the disposition of individual cases to

deliver remedies for wrongs and justice freely and without purchase; completely and without denial; promptly and without delay, conformable to the laws.” *Patton v. Newmar Corp.*, 538 N.W.2d 116, 118 (Minn. 1995) (quotations omitted). We review a district court’s decision to use its inherent authority to impose sanctions in the form of attorney fees for an abuse of discretion. *Peterson v. 2004 Ford Crown Victoria*, 792 N.W.2d 454, 461 (Minn. App. 2010). “Attorney fees may be an appropriate sanction when a party has ‘acted in bad faith, vexatiously, wantonly, or for oppressive reasons.’” *Id.* at 462 (quoting *Chambers v. NASCO, Inc.*, 501 U.S. 32, 45-46 (1991)). A party challenging a district court’s decision to impose attorney fees using its inherent authority “has the difficult burden of convincing” our court that “‘no reasonable person’” would agree with the imposition of sanctions. *Patton*, 538 N.W.2d at 119 (quoting *Marrocco v. Gen. Motors Corp.*, 966 F.2d 220, 223 (7th Cir. 1992)).

Here, the district court found that Asiedu repeatedly misrepresented caselaw, either by citing a case for the wrong legal principle or citing non-existent cases. And during the hearing, Asiedu admitted that he used artificial intelligence as a research tool to draft his filings and did not ensure the accuracy of the caselaw citations on the basis that he was “doing this part time.” The district court determined that, in doing so, Asiedu did not conduct himself in accordance with the promises he made to the court when signing his documents. *Cf.* Minn. R. Civ. P. 11.02(b) (stating that when signing pleadings, attorney certifies “the claims, defenses, and other legal contentions therein are warranted by existing law.”); *Dehghani v. Castro*, No. 2:25-CV-0052, 2025 WL 988009, at *6 (D.N.M. Apr. 2, 2025) (finding a Fed. R. Civ. P. 11 violation for, in part, citing to non-existent case law

because the citations “do not support the stated proposition.”), *aff’d*, 2025 WL 1361765 (D.N.M. May 9, 2025); *Ramirez v. Humala*, No. 24-CV-242, 2025 WL 1384161, at *1 (E.D.N.Y. May 13, 2025) (listing multiple district court decisions and a Second Circuit case finding “submission of nonexistent case citations in filings to the court” as amounting to a Fed. R. Civ. P. 11 violation).¹⁰ The district court also concluded the citations misled the district court. *See Matthew Garner v. Kadince, Inc.*, 571 P.3d 812, 815 (Utah Ct. App. 2025) (“A fake opinion is not ‘existing law’ that can support a party’s legal contention.” (citation omitted)).

Based upon this record, we conclude the district court found that Asiedu acted in bad faith when he did not ensure the accuracy of the caselaw citations on the basis that he was “doing this part time.” We hold pro se parties to the same standard as attorneys when filing documents in court. *See Fitzgerald v. Fitzgerald*, 629 N.W.2d 115, 119 (Minn. App. 2001) (“[P]ro se litigants are generally held to the same standards as attorneys and must comply with court rules.”). Accordingly, we conclude Asiedu has not met his burden to show the district court abused its discretion when it imposed sanctions. *See Patton*, 538 N.W.2d at 119.

Affirmed.

¹⁰ “Though they do not bind us, we consider federal court opinions for their persuasive value and afford those opinions due deference.” *Laliberte v. Dollar Tree, Inc.*, 987 N.W.2d 590, 594 n.4 (Minn. App. 2023) (quotation omitted).